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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.66323 of 2020

Muhammad Tariq
Versus
Controller General of Accounts, Islamabad & others

J U D G M E N T

Date of hearing: 06.06.2022.
Petitioner by: M/s Muhammad Iqbal Mohal and Kamran Bashir Mughal, Advocates.
Respondents by: Mr. Aftab Rahim, Deputy Attorney General.
Barrister Ameer Abbas Ali Khan, Assistant Advocate General.
M/s Mazhar Khurshid, Accounts Officer and Hafiz Ayaz Ahmad, Assistant Accounts Officer.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through instant petition, petitioner has challenged the vires of order dated 11.12.2020, passed by respondent No.3 / Accounts Officer (Admn.), Lahore, whereby petitioner's services as Junior Auditor (BPS-11) were not regularized on account of not having minimum prescribed qualification of 2nd Class Bachelor Degree in Commerce, rather he was offered the post of *Naib Qasid* (BPS-01) on contract basis. Petitioner has sought following relief from this Court:-

"In view of the facts and submissions made above, it is, therefore, most respectfully prayed that while accepting the instant writ petition, the impugned order dated 11.12.2020, passed by respondent No.3 whereby the petitioner is being demoted from the post of Junior Auditor (BS-11) to *Naib Qasid* (BPS-01) and impugned policy whereby the qualification for the post of Junior Auditor has been enhanced from C-Grade Diploma in Commerce to 2nd Class Bachelor Degree in Commerce may kindly be set aside to the extent of petitioner and petitioner may kindly be allowed to perform his duty as Junior Auditor (BPS-11) in the light of first appointment order dated 19.06.2013 and recruitment policy for the year 2006 in the interest of justice, equity and fair play.

It is further prayed that the petitioner may kindly be regularized from the date of his initial appointment as Junior Auditor i.e. 19.06.2013.”

2. Learned counsel for petitioner submits that petitioner, being eligible in all respects, was appointed as Junior Auditor (BS-11) on 19.06.2013 by the respondent-department while observing all the codal formalities, therefore, he could not have been chunked from the service with direction to join as *Naib Qasid* (BS-01) on the pretext of revision in eligibility criteria. He adds that impugned order is absolutely illegal and without any legal justification being violative of Articles 4 & 9 of the Constitution of the Islamic Republic of Pakistan, 1973. He contends that impugned revised policy / notification must be given prospective effect and petitioner’s vested right cannot be taken away by dint of subsequent notification while giving it retrospective effect. In support, he has referred to Mst. Farhana Naz and others v. Government of Punjab and others [2014 PLC (C.S.) 1270], Mir Hassan v. Province of Sindh through Secretary and 3 others [2017 PLC (C.S.) 864] and Malik Muhammad Hashim Awan and another v. Chief Secretary Government of Punjab, Lahore and 3 others [2017 PLC (C.S.) 1085].

3. On the other hand, learned Law Officer defends the impugned order.

4. Arguments heard. Available record perused.

5. Perusal of record shows that after death of petitioner’s father on 29.04.2013, while serving as Divisional Accounts Officer (BS-17), he applied for appointment under the Prime Minister’s Assistance Package for the families of government employees who die in service. Under the scheme, petitioner was entitled to be offered appointment on regular basis as per his eligibility. However, he was appointed on contract basis as Junior Auditor (BS-11) vide office order dated 19.06.2013, which was kept on extending upto 09.06.2022, thus, contractual employment of petitioner is expanding over a period of almost 09-years creating

expectancy of regularization of his services. However, petitioner was encountered with an unexpected anomaly, whereby the competent authority, instead of regularization, discontinued his services as Junior Auditor (BS-11), on the basis of subsequent change in qualification and experience criteria. Respondent-authority erred in law to appreciate that regularization is not the *de novo* appointment on regular basis of a contract employee subject to possession of newly stipulated / added educational qualification rather it is in fact confirmation of an existing employment. The prescribed qualification for the purpose of regularization of services of a contract employee should be that which was prevalent at the time of his appointment. There is no denial to the fact that petitioner was appointed as Junior Auditor as back as in the year 2013 and refusal to regularize and continue his services at this belated stage on the ground of change of requisite qualification, in pursuance of revised policy / rules introduced in the year 2014, does not appeal to prudence. The regularization of services does not create a new job, it only removes the lurking fear of sudden severance of services of an employee and would make his employment status equal to his contemporaries appointed on regular basis on the same day. Reliance is placed upon Aftab Ahmad and others v. Government of Punjab and others [2012 PLC (C.S.) 602] and Dr. Kh. Khurshid Ahmad v. Government of Punjab and others [2014 PLC (C.S.) 1068].

6. Needless to say that right accrued to a person cannot be taken away on the strength of a subsequent notification / policy and any notification which purports to impair an existing or vested right, always applies prospectively in absence of any legal sanction. It is well-settled that effect of a notification / policy taking away certain rights would start from the date of its issuance and only beneficial notification can operate retrospectively. Reference is made to Collector of Central Excise and Land Customs and 3 others v. Azizuddin Industries Ltd., Chittagong

(PLD 1970 SC 439), Jawaria Maqsood v. Joint Admission Committee for Medical Colleges through Chairman and 3 others (2017 YLR 1571), Al-Noor Sugar Mills Limited and another v. Federation of Pakistan and others (2018 SCMR 1792), Malik Muhammad Hashim Awan and another v. Chief Secretary Government of Punjab, Lahore and 3 others [2017 PLC (C.S.) 1085], Mst. Ameeran Mai v. I.-G. Punjab Police, Lahore and 2 others [2015 PLC (C.S.) 289], Province of Punjab through Secretary to the Government v. Dr. Muhammad Zafar Iqbal and 10 others [2018 PLC (C.S.) 152] and Kanwal Rasheed v. Accountant General, Punjab and others [2019 PLC (C.S.) 783].

7. The extraordinary constitutional jurisdiction of this Court is always exercised with compassion and this Court cannot disregard the fact that non-regularization and discontinuation of petitioner's services are the acts violative of right to livelihood. Reliance is placed upon Naveeda Tufail and 72 others v. Government of Punjab and others (2003 SCMR 291) and the case of Mst. Farhana Naz supra.

In Naveeda Tufail's case supra, the Hon'ble Apex Court, while discussing right of livelihood, has ruled as under:-

"Employment for a common person is a source of livelihood and a right of livelihood is an undeniable right to a person. If work is sole source of livelihood of a person, then right to work is not less than a fundamental right which has to be given protection."

8. In view of the above discussion, instant petition is **allowed** to the extent that impugned order is declared to be illegal and without lawful authority, thus, same is set aside.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge